



COURT INTERPRETERS CANNOT BE USED OUTSIDE OF COURT

(Even for the quickest of discussions)

I. ATTORNEYS ARE PROHIBITED FROM USING COURT INTERPRETERS FOR ANY CLIENT COMMUNICATION

There are two bodies of rules which prohibit the use of court interpreters to facilitate any attorney-client discussions, namely (1) the attorney's obligation to comply with the professional rules (especially NY Rule 1.6 relating to the obligation to maintain confidentiality and A/C privilege) and (2) Court Interpreter's obligation to comply with the NYS Unified Court System Court Interpreter Manual and Code of Ethics.¹

Court interpreters are required to "avoid unnecessary contact or discussions with counsel, witnesses or interested parties, either inside or outside the courtroom" Code of Ethics, p.8; See also, Canon 2, p.21; and "inform the Court of any prior contact the interpreter has had with any of the parties or jurors, as soon as he or she is aware of it."

For that reason, any attorney-client communication using a Court Interpreter fails to maintain privilege and client confidentiality - and is thus prohibited.

II. WHAT TO DO WHEN YOU ARE AT COURT:

If you know ahead of time that your case will be in court and you will need to speak with your client, arrange for one with Language Line or obtain an in-person, qualified interpreter to make sure that you have your own interpreter and will not use the Court interpreter.

If necessary, ask for the case to be adjourned or recalled so that you can get your own interpreter for communicating with your client in and out of court. **Do not let the court make the court interpreter serve as your client's interpreter.**

If you have any problems accessing real-time interpretation, please contact the RIAC: we can assist facilitating this service.

¹ Available at https://ww2.nycourts.gov/sites/default/files/document/files/2018-05/CourtInterpreterManual_1.pdf